

26STCV09615 26STCV09615

County: los-angeles

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Case Number: 26STCV09615 Hearing Date: July 15, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

OKWII

AGBO,

Plaintiff,

vs.

CHAD

BIGGINS, ESQ, et al.,

Defendants

Case No.:

26STCV09615

Hearing

Date:

July 15, 2026

[TENTATIVE]

ORDER DENYING SPECIAL MOTION TO STRIKE

COMPLAINT PURSUANT TO CODE OF CIVIL PROCEDURE § 425.16

I. BACKGROUND

Plaintiff Okwii Agbo

(“Plaintiff”) and Defendant Chad Biggins (“Defendant”) entered into a legal services agreement with Plaintiff in connection with a prior anti-SLAPP case. Defendant also entered into a legal services agreement with Plaintiff in two other cases on behalf of Odinama Cultural Association (“Odinama”). Defendant filed a breach of contract action (“Collections Case”) against Plaintiff to recover unpaid legal fees in the two cases on behalf of Odinama. Defendant obtained a default judgment, which allowed Defendant to recover the attorneys’ fees of the two Odinama actions, but did not compensate Defendant in the anti-SLAPP action. Instead, in the anti-SLAPP action, Defendant successfully argued for an award of attorneys’ fees. Plaintiff alleges Defendant wrongfully retained this attorneys’ fees award.

On May 28, 2026, Defendant filed the instant special motion to strike (or “anti-SLAPP motion”) under Code of Civil Procedure section 425.16.[1] Plaintiff opposed. Defendant replied.

II. LEGAL STANDARD

“Litigation

of an anti-SLAPP motion involves a two-step process. First, ‘the moving defendant bears the burden of establishing that the challenged allegations or claims ‘aris[e] from’ protected activity in which the defendant has engaged.’ [Citation.] Second, for each claim that does arise from protected activity, the plaintiff must show the claim has “at least ‘minimal merit.’ [Citation.]” (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009, citations omitted.) To separate communications which form the source of the dispute from those that merely provide evidence of it, courts ask whether “the same dispute would exist” if there were no pending threat of litigation. (Goterba v. Travolta (2014) 228 Cal.App.4th 35, 42.)

As

to the second step of the inquiry, a plaintiff seeking to demonstrate the merit of the claim “may not rely solely on its complaint, even if verified; instead,

its proof must be made upon competent admissible evidence.” (Sweetwater Union High School District v. Gilbane Building Co. (2019) 6 Cal.5th 931, 940, citations omitted.)

A

party opposing a special motion to strike has the burden to “state [] and substantiate [] a legally sufficient claim.”

(Navellier v. Sletten (2002) 29 Cal.4th 82, 88 & 93.) “Put another way, the party “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the defendant is credited.” [Citations.]”

(Id. at pgs. 88-89.) To

that end, the party must present competent evidence, “that would be admissible at trial.” (HMS Capital, Inc. v.

Lawyers Title Co. (2004) 118 Cal.App.4th 204, 212.) “[D]eclarations may not be based upon ‘information and belief’ [citation]” and documents submitted without the proper foundation will not be considered. (Id.) The complaint, even if verified, is insufficient to carry the plaintiff’s shifted burden. (Roberts v. Los Angeles County Bar Association (2003) 105 Cal.App.4th 604, 614; Karnazes v. Ares (2016) 244 Cal.App.4th 344, 354 [“pleadings do not constitute evidence”]; see also Burke, Anti-SLAPP Litigation (The Rutter Group, Civil Litigation Series 2018 §5:13) [“To satisfy prong two, the plaintiff must submit admissible evidence that if credited is sufficient to sustain a favorable judgment against the legal theories asserted by the defendant.”].)

“A

cause of action is subject to a special motion to strike if the defendant shows that the cause of action arises from an act in furtherance of the defendant’s constitutional right of petition or free speech in connection with a public issue and the plaintiff fails to demonstrate a probability of prevailing on the claim. [Citations.]” (Digerati Holdings, LLC v. Young Money Entertainment, LLC (2011) 194 Cal.App.4th 873, 883.)

“An

‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ is defined by statute to include ‘(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a

legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.’

[Citation.] If the defendant

shows that the cause of action arises from a statement described in clause (1) or (2) of section 425.16, subdivision (e), the defendant is not required to separately demonstrate that the statement was made in connection with a ‘public issue.’ [Citation.]” (Id.)

“A cause of action is one ‘arising from’ protected activity within the meaning of section 425.16, subdivision (b)(1) only if the defendant’s act on which the cause of action is based was an act in furtherance of the defendant’s constitutional right of petition or free speech in connection with a public issue. [Citation.]

In deciding whether the ‘arising from’

requirement is satisfied, ‘the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’ [(Code Civ. Proc..

§ 425.16(b)(2).)] Whether the ‘arising

from’ requirement is satisfied depends on the ‘gravamen or principal thrust’ of the claim. [(Episcopal Church Cases

(2009) 45 Cal.4th 467, 477, quoting Martinez v. Metabolife International,

Inc. (2003) 113 Cal.App.4th 181, 193.]] A cause of action does not arise from

protected activity for purposes of the anti-SLAPP statute if the protected activity is merely incidental to the cause of action. [(Martinez, supra,113

Cal.App.4th at p. 188.))” (Digerati

Holdings, LLC, supra, 194 Cal.App.4th at pp. 883-884.)

To show that a claim arises from protected activity under

§425.16(b)(1), it is not sufficient to show that the claim “was filed after, or because of, protected activity, or when protected activity merely provides evidentiary support or context for the claim.”

(Rand Resources, LLC v. City of Carson (2019) 6 Cal.5th 610,

621.) “Rather, the protected activity

must ‘supply elements of the challenged claim.’ [Citation.]”

(Id., citations omitted.)

“At

the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them.

When relief is sought based on

allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage.”

(Baral v. Schnitt (2016) 1 Cal.5th 376, 396, emphasis added.)

III. DISCUSSION

Defendant requests the

Court strike the complaint as the causes of action asserted against Defendant

arise from Defendant’s protected exercise of free speech or petition rights. (Mot., p. 1.) Pursuant to section 425.16, subdivision (b), a

cause of action against a person arising from the person’s right of petition or free speech shall be subject to a special motion to strike unless the court determines the plaintiff has established there is a probability the plaintiff will prevail on the claim.

A.

First

Prong – Protected Activity

Defendant argues

Plaintiff’s claims rest on the allegation that Defendant wrongfully sued

“Plaintiff in her individual capacity” by filing the Collections Case, and that

no cause of action is based on Defendant’s retention of a court-ordered fee

award. (Mot., p. 4.) Defendant further argues filing a lawsuit is

an expressly protected activity under section 425.16, subdivision (e)(1). (Mot., p. 4.)

The Anti-SLAPP statute

defines protected activity as follows:

“(1)

any written or oral statement or writing made before a legislative, executive,

or judicial proceeding, or any other official proceeding authorized by law, (2)

any written or oral statement or writing made in connection with an issue under

consideration or review by a legislative, executive, or judicial body, or any

other official proceeding authorized by law, (3) any written or oral statement

or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc. § 425.16, subd. (e).)

It is “the principal thrust or gravamen of the plaintiff’s cause of action that determines whether the anti-SLAPP statute applies [citation], and when the allegations referring to arguably protected activity are only incidental to a cause of action based essentially on nonprotected activity, collateral allusions to protected activity should not subject the cause of action to the anti-SLAPP statute.” (Martinez v. Metabolife Internat., Inc. (2003) 113 Cal.App.4th 181, 188; emphasis in original.) “The critical point is whether the plaintiff’s cause of action itself was based on an act in furtherance of the defendant’s right of petition or free speech.” (City of Cotati v. Cashman (2002) 29 Cal. 4th 69, 78.)

Defendant’s assertion that Plaintiff’s complaint is not based on Defendant’s retention of a court-ordered fee award, but only on Defendant wrongfully suing Plaintiff in the Collections Case is misplaced. Upon review of Plaintiff’s complaint, the gravamen of Plaintiff’s claims are that Defendant breached his fiduciary duty in several ways, including: (1) by wrongfully retaining the \$18,000 obtained as a result of a court ordered fee award in the previous Anti-SLAPP litigation, (2) by calling Plaintiff’s employer and stating Plaintiff owed him money, and (3) by suing Plaintiff in her individual capacity for the debt of Odinama. (See Compl., ¶¶ 21, 23, 26, 30, 33, 40, 42, 47, 49, 50, 58-61, 71-75.) In fact, the Complaint only makes the allegation that Defendant breached his fiduciary duty by suing Plaintiff in her individual capacity in the Collections Case twice in the complaint, compared to the numerous times Plaintiff alleges Defendant breached his duties by wrongfully retaining the \$18,000. (Compl., ¶¶ 62, 76.) The principal thrust of each of the causes of action is that Defendant breached the duties owed to Plaintiff, both contractual and fiduciary, not that Defendant wrongfully sued Plaintiff in the Collections Case.

Thus, the gravamen of the action is not the filing of the Collections Case, nor is it any communications made to obtain or enforce court orders.

The gravamen of Plaintiff's claims is Defendant's various alleged breach of duties owed to Plaintiff. "A cause of action does not arise from protected activity for purposes of the anti-SLAPP statute if the protected activity is merely incidental to the cause of action." (Martinez, supra, 113 Cal.App.4th at p. 188.) Defendant's filing of the Collections Case or retention of the \$18,000 is incidental to the gravamen of Plaintiff's causes of action—that Defendant breached his duties to Plaintiff. Plaintiff's claims arise from unprotected conduct and are therefore not subject to an anti-SLAPP motion.

Defendant has not satisfied the initial burden of demonstrating Defendant's activity is protected under section 425.16. Therefore, the Court denies the instant motion.

IV. CONCLUSION

Defendant's special motion to strike is DENIED.

Defendant is ordered to give notice.

DATED:

July 15, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time,

counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.